

1.

CASE #	CASE NAME	HEARING NAME
CVRI2404180	MENDEZ vs GENERAL MOTORS, LLC	MOTION FOR ATTORNEYS FEES

Tentative Ruling:

Moving party: Plaintiffs Liliana Rodriguez and Lucio Mendez
Responding party: Defendant General Motors, LLC

This is a lemon law action. On July 8, 2020, Plaintiffs Liliana Rodriguez and Lucio Mendez (“Plaintiffs”) purchased a used 2020 GMC Sierra 1500 (“Vehicle”) for \$77,256.68. (First Amended Complaint [“FAC”] ¶ 32.) The Vehicle was manufactured and warranted by Defendant General Motors, LLC (“GM”) and came equipped with GM’s 3-year/36,000-mile basic bumper-to-bumper and 5-year/60,000-mile powertrain express warranties. (*Id.* at ¶ 8.)

Shortly after purchase, Plaintiffs began to experience significant problems with the subject vehicle, including issues related to (a) the illumination of the “Check Engine” warning light; (b) recall #N192282860 to address the “Software Update for Internal Range Sensor Failure”; (c) harsh shifting symptoms with the Vehicle’s transmission. (*Id.* at ¶¶ 35–36.) Plaintiffs delivered the vehicle to GM on two separate occasions, resulting in the vehicle being out of service for nearly one hundred seven (107) days. (*Id.* at ¶ 36.) Despite having knowledge of these defects, GM failed to promptly repurchase or replace Plaintiffs’ Vehicle.

Prior to litigation, GM did not make an offer to repurchase the Vehicle. (Barry Decl. ¶ 5.) Plaintiffs retained The Barry Law Firm on a contingency basis and filed suit on July 24, 2024. (*Id.*) On August 27, 2024, Plaintiffs filed the operative First Amended Complaint (“FAC”) asserting Song-Beverly claims for breach of express and implied warranty, a claim for fraudulent concealment, and a claim for violation of the Consumer Legal Remedies Act (“CLRA”) as well as a claim for violation of Civ. Code § 1793.2(b).

GM filed a demurrer to Plaintiffs’ fraud claim and CLRA claim and a motion to strike punitive damages from Plaintiffs’ FAC. Plaintiffs timely opposed. On November 18, 2024, the Court overruled GM’s demurrer in its entirety, and denied GM’s motion to strike punitive damages from Plaintiffs’ FAC.

Defendants answered and served discovery on Plaintiffs. (Keshishian Decl. ¶ 5.) Plaintiffs served written discovery and a Person Most Knowledgeable (“PMK”) deposition notice on GM; GM objected to the PMK deposition notice. (*Id.* at ¶¶ 5–8.) After meet-and-confer efforts failed to resolve discovery disputes, Plaintiffs filed three motions to compel further responses to form interrogatories, special interrogatories, and requests for production. (*Id.* at ¶¶ 10–11.) The Court granted Plaintiffs’ motions in part on May 20, 2025. (*Id.* at ¶ 11.)

On January 8, 2026, GM served its 998 Offer of Compromise (“998 Offer”) to Plaintiffs in the amount of \$100,000.00. (*Id.* at ¶ 13.) GM agreed that Plaintiffs are the

prevailing party and to pay Plaintiffs' attorneys' fees, costs, and expenses pursuant to Civ. Code § 1794(d) by way of motion. Plaintiffs accepted GM's 998 Offer on January 23, 2026, with Plaintiffs electing fees by motion. (*Id.*)

Plaintiffs request \$36,361.50 in attorney's fees and \$2,468.29 in costs, for a total of \$38,829.79. In their motion, Plaintiffs initially sought a total lodestar of \$40,809.50. As explained in reply, Plaintiffs withdrew \$4,448.00 from the lodestar, making the total sought \$36,361.50.

The work was performed by six attorneys at The Barry Law Firm at the following hourly rates: Brian J. Kim (\$450/hour), David N. Barry (\$695/hour), Kristopher Storti (\$600/hour), Otis R. Hayes III (\$550/hour), Logan Pascal (\$500/hour), and C. Richard Lara (\$375/hour). (Barry Decl. ¶ 13.) Plaintiffs argue that GM's litigation strategy necessitated extensive discovery work, including motions to compel, and that the fees were reasonably incurred in response to GM's tenacious litigation.

GM does not object to Plaintiffs' hourly rates. GM, however, argues that Plaintiffs' fee request should be reduced to \$11,703.48 in fees and \$551.20 in costs. GM challenges the fees on multiple grounds, seeking to strike 57.2 hours (\$29,106.02) as non-compensable CLRA and fraud work, templated discovery, non-compensable clerical and business expenses, and excessive time entries. GM also challenges \$1,917.09 in costs as unnecessary or undocumented.

In reply, Plaintiffs note that **GM did not object to their hourly rates** and request that they be approved in their entirety. Plaintiffs withdrew the 6.4 hours (\$4,448.00) for anticipated work on a motion to tax costs that GM did not file. Plaintiffs argue that GM's challenges are unsupported by legal authority and consist of mere opinions about what is reasonable.

Along with their reply, Plaintiffs submitted the Supplemental Declaration of David N. Barry, Esq., attaching a copy of the discovery and deposition notices propounded in this matter and invoices supporting Plaintiffs' claimed costs. New evidence in reply papers is generally not permitted and allowed only in exceptional cases; however, the Court has discretion to accept it as long as the opposing party is given an opportunity to respond. (*Jay v. Mahaffey* (2013) Cal.App.4th 1522, 1537–38.) Here, the Barry Declaration and exhibits were submitted in response to GM's arguments that Plaintiffs' discovery work was templated and that the claimed costs lacked itemization. Given the circumstances, the Court will exercise its discretion to consider it and afford **GM an opportunity to respond at the hearing.**

Analysis

1. Legal Standard

Under Civ. Code § 1794(d), if the buyer prevails in an action under the Song Beverly Act, the buyer shall be allowed to recover "a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time

expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” (Civ. Code § 1794(d).) There is no dispute that Plaintiffs are the prevailing party and are entitled to reasonable attorney fees. The only question is the amount of the award.

In determining the reasonable amount, the court first determines a lodestar figure (time reasonably spent multiplied by a reasonable hourly rate) and may then adjust. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1131–32.) Attorney fee awards should be fully compensatory. (*Id.* at 1133.) However, a fee request that appears unreasonably inflated is a special circumstance permitting the trial court to reduce the award or deny one altogether. (*Serrano v. Unruh* (1982) 32 Cal.3d 621, 635.) The reasonableness of attorney fees is within the sound discretion of the trial court. (*Donahue v. Donahue* (2010) 182 Cal.App.4th 259, 271.)

“A prevailing buyer has the burden of showing that the fees incurred were allowable, were reasonably necessary to the conduct of the litigation, and were reasonable in amount.” (*Morris v. Hyundai Motor Am.* (2019) 41 Cal.App.5th 24, 34 [internal quotation marks & quotation omitted].) If the party seeking fees fails to meet this burden, and the court finds the time expended or amount charged is not reasonable under the circumstances, “then the court must take this into account and award attorney fees in a lesser amount.” (*Id.*)

As to litigation costs, under CCP §§ 1032 and 1033.5, a prevailing party is entitled as a matter of right to recover costs. Section 1033.5(a) lists items expressly allowable; section 1033.5(b) lists items expressly non-allowable; any other items may be allowed or denied in the court’s discretion under section 1033.5(c)(4). A verified memorandum of costs is prima facie evidence that items are properly chargeable; where costs appear proper on their face, the burden is on the objecting party to show them unnecessary or unreasonable. (*Nelson v. Anderson* (1999) 72 Cal.App.4th 111, 131.)

2. Motion for Attorneys’ Fees

a. Hourly Rates

Plaintiffs seek hourly rates ranging from: David N. Barry (\$695/hour), Kristopher Storti (\$600/hour), Otis R. Hayes III (\$550/hour), Logan Pascal (\$500/hour), Brian J. Kim (\$450/hour), and C. Richard Lara (\$375/hour). A “reasonable” hourly rate is the prevailing rate charged by attorneys of similar skill and experience in the relevant community. (*Ketchum, supra*, 24 Cal.4th at 1133.) GM does not challenge Plaintiffs’ hourly rates. Although rates above \$600 per hour are on the higher end, given the unchallenged supporting evidence and counsel’s experience, the Court finds the rate reasonable for purposes of this motion. Thus, no reduction is warranted as to hourly rates.

b. Hours Billed

Plaintiffs originally sought 80.7 hours of work but withdrew 6.4 hours (\$4,448.00)

for work on an anticipated motion to tax costs that was not filed. The revised request is for 74.3 hours totaling \$36,361.50. GM challenges 57.2 hours (\$29,106.02) and requests that the Court award no more than 23.5 hours (\$11,703.48). Each category of GM's challenges is addressed below.

CLRA and Fraud Claims (6.7 hours / \$3,178.00). GM seeks to strike 6.7 hours (\$3,178.00) billed on tasks GM contends were solely related to the CLRA and fraud causes of action, arguing these are non-fee-bearing claims. It is well settled that “[w]hen a cause of action for which attorney fees are provided by statute is joined with other causes of action for which attorney fees are not permitted, the prevailing party may recover only on the statutory cause of action,” unless the issues are common or “the claims for relief are so intertwined that it would be impracticable, if not impossible, to separate the attorney’s time into compensable and noncompensable units.” (*Santana v. FCA US, LLC* (2020) 56 Cal.App.5th 334, 349 [internal quotation omitted].) The burden rests on the party seeking apportionment to identify discrete work “solely focused” on the non-fee claim. (*Id.* at 350.)

Applying that standard, GM’s request is granted in part and denied in part. The following entries relate exclusively to the fraud and CLRA causes of action and are readily separable from the Song-Beverly claim: drafting the CLRA letter (\$69.50), reviewing and responding to GM’s meet-and-confer regarding the CLRA claim (\$139.00), reviewing GM’s meet-and-confer response (\$69.50), reviewing GM’s demurrer and motion to strike (\$1,035.00), drafting opposition (\$1,035.00), reviewing GM’s reply (\$270.00), telephonic meet-and-confer regarding pleadings (\$90.00), and appearing at the demurrer hearing (\$350.00). GM’s demurrer and motion to strike were directed only at the fraud and CLRA claims. These entries total 6.4 hours / \$3,058.00 and are properly excluded under *Santana*.

However, GM also seeks to strike 0.3 hours (\$120.00) for reviewing the FAC. The FAC did not solely add fraud/CLRA claims, but also added a Song-Beverly claim under Civ. Code § 1793.2(b). Review of the FAC therefore encompassed the fee-bearing statutory claim and is not “solely focused” on the non-fee claims. This entry is not apportionable under *Santana*. Thus, no reduction is warranted as to this entry. The Court therefore grants in part and reduce fees by \$3,058.00.

Pre-Filing Client Communications and Case Evaluation (1.3 hours / \$585.00). GM challenges 1.3 hours (\$585.00) billed for communicating with Plaintiffs regarding “case status” and reviewing repair orders before the Complaint was even drafted. However, pre-litigation activities are compensable under Song-Beverly. (*Stokus v. Marsh* (1990) 217 Cal.App.3d 647, 655.) The fees for investigation, preliminary research, drafting of demand letters, and working on the initial complaint fit the description of standard preliminary steps toward litigation. This work was necessarily incurred in connection with the commencement of the action. Thus, no reduction is warranted.

Reviewing GM’s Discovery Requests and Drafting Responses (4.2 hours / \$1,890.00). GM challenges 4.2 hours (\$1,890.00) billed by Mr. Kim to review GM’s discovery requests and draft templated responses, arguing the time is excessive

because GM uses the same requests in each Song-Beverly case. While some efficiency is expected from familiarity with standard discovery, counsel must still review requests, assess their applicability to this specific case, and prepare appropriate responses. However, 4.2 hours to review and respond to standard form discovery in a straightforward lemon law case is excessive. The Court finds that a reasonable amount of time for this task is 3.0 hours. The Court grants in part and reduce fees by 1.2 hours (\$540.00).

Drafting Discovery Requests to GM (1.6 hours / \$720.00). GM challenges 1.6 hours (\$720.00) to draft Plaintiffs' discovery requests and deposition notice, arguing these are templates. While Plaintiffs use templates, the discovery must still be tailored to the specific vehicle defects and repair history in this case. However, given that much of the work is template based, 1.6 hours is somewhat excessive. The Court finds that a reasonable amount of time is 1.0 hour. The Court grants in part and reduce fees by 0.6 hours (\$270.00).

Reviewing GM's Discovery Responses (4.1 hours / \$1,845.00). GM challenges 4.1 hours (\$1,845.00) to read GM's written discovery responses, objections, and document production. GM argues that neither Plaintiffs' requests nor GM's responses varied significantly from other Song-Beverly cases counsel routinely litigates. Some review is necessarily compensable—e.g., counsel must analyze GM's specific objections and production to assess sufficiency and prepare meet-and-confer efforts. However, 4.1 hours to read written responses and objections in a straightforward lemon law case is excessive. The Court finds that a reasonable amount of time is 3.0 hours. The Court grants in part and reduces fees by 1.1 hours (\$495.00).

Meet-and-Confer Correspondence (3.1 hours / \$1,395.00). GM challenges 3.1 hours (\$1,395.00) to draft meet-and-confer letters regarding GM's PMK deposition and discovery responses. While some template language may be used, meet-and-confer letters must address the specific deficiencies in GM's responses to this case. However, 3.1 hours for meet-and-confer correspondence is excessive. The Court finds that a reasonable amount of time is 2.0 hours. The Court grants in part and reduces fees by 1.1 hours (\$495.00).

Motions to Compel (18.4 hours / \$8,280.00). GM challenges 18.4 hours (\$8,280.00) for drafting motions to compel further responses to form interrogatories, special interrogatories, and requests for production, reviewing GM's opposition, drafting a reply brief, reviewing the Court's minute order, and drafting a notice of ruling. GM argues the motions are templates and that they were unnecessary because GM already agreed to produce supplemental discovery. While discovery motions may share common legal arguments across cases, each motion must address the specific discovery at issue and the opposing party's specific objections and responses. The Court granted Plaintiffs' motions in part, indicating they had some merit. (See Court's Order dated May 20, 2025.) However, 18.4 hours for three related discovery motions (form interrogatories, special interrogatories, and requests for production), an opposition review, and a reply is on the high side. The Court finds that a reasonable amount of time for these tasks is 12.0 hours. The Court grants in part and reduces fees by 6.4 hours (\$2,880.00).

Third-Party Dealership Deposition Subpoenas (3.2 hours / \$1,734.00). GM challenges 3.2 hours (\$1,734.00) billed to draft deposition subpoenas for the PMK, service advisors, and technicians of Moss Bros GMC, the authorized dealer that performed the warranty repairs on the Vehicle. GM argues the subpoenas were unnecessary and served no purpose other than to increase fees.

Percipient-witness discovery from the repairing dealer is directly relevant to the core Song-Beverly issues, including the nature of the nonconformities, the repairs attempted, and whether the vehicle was conformed to warranty. The fact that the depositions were not ultimately taken, because the case settled following GM's 998 Offer, does not render the work unreasonable. Plaintiffs also attached copies of the deposition notices and document demands to the Barry Declaration in reply, demonstrating that the subpoenas were tailored to the specific vehicle and repair history. (Barry Suppl. Decl. ¶ 3, Ex. 1.)

However, 3.2 hours to draft deposition subpoenas is somewhat excessive given counsel's extensive experience with Song-Beverly litigation and the routine nature of dealership discovery. The Court finds that a reasonable amount of time for this task is 2.0 hours. The Court grants in part and reduce fees by 1.2 hours (\$651.00).

Excessive Client Communications (4.7 hours / \$2,690.93). GM challenges 4.7 hours (\$2,690.93) for client communications, including updates regarding case status and reviewing email correspondence from clients. Some level of client communication is necessary and compensable. However, 4.7 hours for client updates in a relatively straightforward lemon law case that settled before trial is excessive. The Court finds that a reasonable amount of time is 3.0 hours. The Court grants in part and reduce fees by 1.7 hours (\$973.00).

Excessive File Review (0.8 hours / \$425.33). GM challenges 0.8 hours (\$425.33) for reviewing the file and drafting memos to file, arguing this is duplicative. Periodic file review is standard litigation practice and ensures counsel is informed before taking substantive steps in the case. The total of 0.8 hours over the life of this matter is minimal and reasonable. No reduction is warranted.

Travel Time (4.1 hours / \$2,050.00). GM challenges 4.1 hours (\$2,050.00) for travel time to and from Victorville for Plaintiffs' depositions. Reasonable travel time by the attorney during the course of litigation may be compensable at full rates if that is the practice in the community. Travel to attend client depositions is a necessary part of litigation. The Court finds this time reasonably incurred. Thus, no reduction is warranted.

Fee Motion (12.6 hours / \$6,962.50). GM challenges 12.6 hours (\$6,962.50) for the fee motion, arguing: (1) 1.5 hours were spent reviewing and revising personal declarations that do not change from case to case; (2) the fee motion is virtually identical to other motions counsel has filed; and (3) this activity constitutes 17 percent of all billed fees. GM requests that the Court award only 3.0 hours total (1.0 hour for the motion, 1.0 hour for reply, 1.0 hour for hearing). A prevailing party is entitled to fees for time spent preparing and litigating the fee application. Absent circumstances rendering

the award unjust, an attorney fee award should ordinarily include compensation for all the hours reasonably spent, including those relating solely to the fee. (*Ketchum, supra*, 24 Cal.4th at 1133.) While some template language may be used, each fee motion must address the specific work performed in the case and respond to the specific challenges raised by the opposing party. Given the comprehensiveness of GM's opposition (with numerous exhibits and specific challenges to individual billing entries), the time spent on the fee motion is not unreasonable. However, 12.6 hours is somewhat excessive for a fee motion in a case that settled before trial. The Court finds that a reasonable amount of time is 9.0 hours. The Court grants in part and reduce fees by 3.6 hours (\$1,980.00).

Summary of Fee Reductions:

Category	Hours Reduced	Amount Reduced
CLRA and Fraud Claims	6.4	\$3,058.00
Reviewing GM's Discovery Requests and Drafting Responses	1.2	\$540.00
Drafting Discovery Requests to GM	0.6	\$270.00
Reviewing GM's Discovery Responses	1.1	\$495.00
Meet-and-Confer Correspondence	1.1	\$495.00
Motions to Compel	6.4	\$2,880.00
Third-Party Dealership Deposition Subpoenas	1.2	\$651.00
Excessive Client Communications	1.7	\$973.00
Fee Motion	3.6	\$1,980.00
Total	23.3	\$11,342.00

Based on the above, the Court reduces the requested fees by \$11,342.00 and awards attorney's fees in the amount of **\$25,019.50** (\$36,361.50 – \$11,342.00).

3. Litigation Costs

Under CCP §§ 1032 and 1033.5, a prevailing party is entitled as a matter of right to recover costs. Section 1033.5(a) lists items expressly allowable; section 1033.5(b) lists items expressly non-allowable; any other items may be allowed or denied in the Court's discretion under section 1033.5(c)(4). A verified memorandum of costs is prima facie evidence that items are properly chargeable; where costs appear proper on their face, the burden is on the objecting party to show them unnecessary or unreasonable. (*Nelson, supra*, 72 Cal.App.4th at 131.)

Plaintiffs seek \$2,468.29 in costs. GM challenges several categories and requests that the Court award only \$551.20 in costs.

a. Filing and Motion Fees: \$690.00

Plaintiffs seek \$690.00 in filing fees: Complaint (\$450.00), Motion for Attorneys' Fees and Costs (\$60.00), Motion to Compel Further Responses to Requests for Production (\$60.00), Motion to Compel Further Responses to Form Interrogatories (\$60.00), and Motion to Compel Further Responses to Special Interrogatories (\$60.00). GM argues that Plaintiffs should not recover \$180.00 for the three motions to compel and the fee motion because the discovery motions were unnecessary and the fee motion was necessitated by Plaintiffs' filing rather than GM's conduct.

However, filing fees for the Complaint and the fee motion are recoverable; the fee motion was necessitated by the parties' agreement that fees would be determined by noticed motion, and GM's refusal to meet and confer informally. Filing fees for the motions to compel are also recoverable; the Court granted these motions in part, indicating they had merit. Thus, no reduction is warranted. The Court awards \$690.00.

b. Jury Fees: \$150.00

Plaintiffs seek \$150.00 in jury fees posted on December 23, 2024. GM argues this cost should be stricken because the case never went to trial. To ensure a jury trial, a party seeking a jury trial must pay a nonrefundable \$150.00 fee to offset the costs of the state in providing a jury trial. (CCP § 631(b).) A court may award jury fees to a prevailing party in a case that does not go to trial because paying the nonrefundable jury fee is required to preserve a party's right to trial by jury. (*Naser v. Lakeridge Athletic Club* (2014) 227 Cal.App.4th 571, 576.) Thus, the Court awards \$150.00.

c. Service of Process: \$703.43

Plaintiffs seek \$703.43 for service of process, consisting of: service on GM of the Complaint (\$41.20), service on GM of the FAC (\$41.20), and service of deposition subpoenas on Moss Bros GMC's PMK, custodian of records, and service advisors/technicians (\$621.03). GM challenges: (a) the \$41.20 for service of the FAC as duplicative and connected to the non-fee-bearing fraud/CLRA claims; and (b) the \$621.03 in third-party subpoena service costs as unnecessary and unrecoverable under CCP § 1033.5(b)(2), because the depositions were never taken.

Service of process costs are expressly allowable under CCP § 1033.5(a)(4). Service of the FAC was not duplicative; it was a separate, procedurally required act of service, and the FAC added a Song-Beverly claim (Civil Code § 1793.2(b)) in addition to preserving the prior claims. The service therefore benefited the fee-bearing statutory claim as well.

As for the third-party subpoenas, Plaintiffs served deposition subpoenas on Moss Bros GMC—the authorized dealer that performed the warranty repairs on the Vehicle. Percipient-witness discovery from the repairing dealer is not a non-recoverable "investigation expense" within the meaning of section 1033.5(b)(2), and the fact that the depositions were never taken (because the case settled following GM's 998 offer) does

not, by itself, render the service costs unreasonable. Plaintiffs also attached the underlying invoices to the Barry Declaration in reply, itemizing each service charge. (Barry Suppl. Decl. ¶ 4, Ex. 2.) Thus, no reduction is warranted. The Court awards \$703.43.

d. Court Reporter Fees: \$550.00

Plaintiffs seek \$550.00 in court reporter fees for the hearing on this fee motion. GM argues this is an estimate for future services not yet incurred. Costs are recoverable under Civ. Code § 1794(d) only if “reasonably **incurred** by the buyer in connection with the commencement and prosecution of [the] action.” (Civ. Code § 1794(d) [emphasis added].) A cost that has not yet been sustained has not been “incurred” within the meaning of the statute. (Civ. Code § 1794(d).) This is reinforced by CCP § 1033.5(c)(2), which requires that allowable costs be “reasonably necessary to the conduct of the litigation,” and by the verified memorandum of costs itself, which must state that items were “necessarily **incurred**.” (CRC Rule 3.1700(a)(1) [emphasis added].) Because Plaintiffs have not yet incurred this expense, the Court reduces costs by \$550.00.

e. Electronic Filing Fees: \$240.58

Plaintiffs seek \$240.58 for electronic filing or service fees. GM argues Plaintiffs provided no explanation for these alleged costs and the entry should be stricken. Fees for electronic filing or service of documents through an electronic filing service provider are expressly allowable under CCP § 1033.5(a)(14) where the court requires electronic filing. Riverside County Superior Court Local Rule 3118 requires that in all limited and unlimited civil actions, parties represented by counsel must file documents electronically, and mandates that electronic filing be submitted using electronic filing service providers. Plaintiffs’ counsel therefore had no option but to incur electronic filing service provider fees to prosecute this action. Although GM contends the entry is inadequately itemized, the verified Memorandum of Costs is prima facie evidence of propriety, and GM has offered no specific challenge to any particular filing charge. Moreover, in the reply, Plaintiffs attached invoices from their electronic filing service provider itemizing the charges. (Barry Suppl. Decl. ¶ 4, Ex. 2.) The Court awards \$240.58.

f. Other (Mileage and Certified Mail): \$134.28

Plaintiffs seek \$134.28 for: (a) certified mail receipt for CLRA letter (\$9.68); and (b) mileage to and from Victorville for Plaintiffs’ depositions (\$124.60 total). GM argues these are overhead costs and inherent costs of doing business. The certified mail cost for the CLRA letter relates to a claim on which Plaintiffs did not prevail and is not recoverable. However, mileage to attend client depositions is a reasonable litigation expense. The Court reduces the CLRA certified mail cost (\$9.68) but awards the mileage (\$124.60).

Category	Requested	Awarded
Filing and Motion Fees	\$690.00	\$690.00
Jury Fees	\$150.00	\$150.00
Service of Process	\$703.43	\$703.43
Court Reporter Fees	\$550.00	\$0.00
Electronic Filing Fees	\$240.58	\$240.58
Other (Mileage/Certified Mail)	\$134.28	\$124.60
Total	\$2,468.29	\$1,908.61

Based on the above, the Court reduces the requested costs by \$559.68 and award litigation costs in the amount of **\$1,908.61** (\$2,468.29 – \$559.68).

Accordingly, the Court awards Plaintiffs **\$25,019.50** in attorney's fees and **\$1,908.61** in costs, for a combined award of **\$26,928.11**.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2602032	LOYA vs GENERAL MOTORS, LLC.	DEMURRER ON COMPLAINT

Tentative Ruling:

Moving party: Defendant General Motors, LLC (“Defendant” or “GM”)
Responding party: Plaintiffs Blanca Loya and Erif Loya (“Plaintiffs”)

This is a lemon law case. On April 3, 2026, a Complaint for Statutory Violations was filed alleging: (1) Violation of CC § 17;93.2(d); (2) Violation of CC § 1793.2 (b); (3) Violation of CC § 1793.2 (a)(3); (4) Breach of the Implied Warranty of Merchantability (CC § 1791.1; 1794; 1795.5) and (5) Fraudulent Inducement.

Defendant GM now demurs to the 4th and 5th causes of action. As to the 4th cause of action, Defendant contends that the cause of action is barred by the applicable statute of limitations. As to the 5th cause of action, Defendant contends that (1) the cause of action is barred by the applicable statute of limitations; (2) the Complaint fails to state facts sufficient to constitute a cause of action and (3) the cause of action is barred by the economic loss rules and independent tort principle as Plaintiff cannot establish the elements of their fraudulent concealment claim independently of the parties’ contractual rights and obligations.

In Opposition, Plaintiff contends that: (1) the Complaint does not affirmatively show a statute of limitations defense as to the 4th cause of action; (2) the 5th cause of action alleges all of the essential elements; a transactional relationship does not require private in the sale for the manufacture to have a duty to disclose; the cause of action is allowed under California law and is not blocked by the economic loss rule.